House Study Bill 115 - Introduced

HOUSE FILE _____
BY (PROPOSED COMMITTEE ON JUDICIARY BILL BY CHAIRPERSON HOLT)

A BILL FOR

An Act relating to statutory corrections which may adjust language to reflect current practices, insert earlier omissions, delete redundancies and inaccuracies, resolve inconsistencies and conflicts, remove ambiguities, and provide for Code editor directives.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF IOWA:

Section 1. Section 8.76, unnumbered paragraph 1, Code 2025, is amended to read as follows:

As used in this ~~chapter~~ subchapter, unless the context otherwise requires:

Sec. 2. Section 8.85, subsection 6, paragraph c, Code 2025, is amended to read as follows:

c. For purposes of this subsection, *"cloud computing solutions"* means the same as described in ~~section 8.2, subsection 20~~ section 8.76, subsection 12, paragraph *"1"*.

Sec. 3. Section 8E.208, subsection 1, Code 2025, is amended to read as follows:

1. Each agency shall identify, collect, and maintain data for metrics and measures critical to monitoring and assessing the performance of ~~their~~ the agency's operations.

Sec. 4. Section 8E.209, Code 2025, is amended to read as follows:

8E.209 Records and data.

Each agency is responsible for classifying records and data to facilitate safeguarding its own information and making that information available to appropriate audiences. The department may review any records and data an agency collects, creates, and maintains for purposes of monitoring ~~their~~ the agency's operations and assessing performance. Upon the department's request, an agency shall provide the department with and routinely update such records and data that support enterprise-wide initiatives, planning or policy development, cross-agency collaboration, or performance or risk assessments. Data must be as granular as possible and include key dates and characteristics critical to monitoring and assessing performance and facilitating insights. Each agency shall provide data in a format required by the department and update the data on a schedule appropriate for the data.

Sec. 5. Section 10A.506, subsection 10, Code 2025, is amended to read as follows:

10. Notwithstanding section 17A.6, subsection 3, the

licensing boards included within the department pursuant to subsection 1 may adopt standards by reference to another publication without posting the publication ~~to~~ on the boards' internet sites if the publication containing the standards is readily accessible on the internet at no cost and the internet site at which the publication may be found is included in the administrative rules that adopt the standard.

Sec. 6. Section 10A.511, unnumbered paragraph 1, Code 2025, is amended to read as follows:

The duties of the director ~~as it relates~~ relating to fire control shall be as follows:

Sec. 7. Section 15.412, subsection 1, paragraph a, Code 2025, is amended to read as follows:

a. An innovation and commercialization development fund is created in the state treasury under the control of the authority. The fund shall consist of moneys appropriated to the authority and any other moneys available to~~,~~ or obtained~~,~~ or accepted by the authority for placement in the fund.

Sec. 8. Section 25.8, Code 2025, is amended to read as follows:

25.8 Limitation on claims to be considered.

~~No~~ A claim against the state shall not be considered or allowed by the general assembly ~~except it be~~ unless the claim has been presented before the state appeal board as provided in this chapter.

Sec. 9. Section 28E.7, Code 2025, is amended to read as follows:

28E.7 Obligations not excused.

~~No~~ An agreement made pursuant to this chapter shall not relieve any public agency of any obligation or responsibility imposed upon it by law except that to the extent of actual and timely performance ~~thereof~~ of the obligation or responsibility by a joint board or other legal or administrative entity created by an agreement made ~~hereunder~~ under this chapter, ~~said~~ the performance may be offered in satisfaction of the public

agency's obligation or responsibility.

Sec. 10. Section 28E.9, Code 2025, is amended to read as follows:

28E.9 Status of interstate agreement.

1. If an agreement entered into pursuant to this chapter is between or among one or more public agencies of this state and one or more public agencies of another state or of the United States ~~said~~, the agreement shall have the status of an interstate compact. Such agreements shall, before entry into force, be approved by the attorney general who shall determine whether the agreement is in proper form and compatible with the laws of this state.

2. In any case or controversy involving performance or interpretation ~~thereof~~ of, or liability ~~thereunder~~ under, the agreement, the public agencies party ~~thereto~~ to the agreement shall be real parties in interest, and the state may maintain an action to recoup or otherwise make itself whole for any damages or liability which it may incur by reason of being joined as a party therein. Such action shall be maintainable against any public agency or agencies whose default, failure of performance, or other conduct caused or contributed to the incurring of damage or liability by the state.

Sec. 11. Section 68B.2, subsections 17 and 25, Code 2025, are amended to read as follows:

17. *"Official"* means all statewide elected officials, the executive or administrative head or heads of an agency of state government, the deputy executive or administrative head or heads of an agency of state government, members of boards or commissions as defined under section 7E.4, and heads of the major subunits of departments or independent state agencies whose positions involve a substantial exercise of administrative discretion or the expenditure of public funds as defined under rules of the board adopted in consultation with the department or agency and pursuant to chapter 17A. *"Official"* does not include officers or employees of political

subdivisions of the state, members of the general assembly, legislative employees, officers or employees of the judicial branch of government who are not members or employees of the office of attorney general, members of state government entities which are or exercise the same type of authority that is exercised by councils or committees as defined under section 7E.4, or members of any agricultural commodity promotional board, if ~~the~~ such board is subject to a producer referendum.

25. *"State employee"* means a person who is not an official and is a paid employee of the state of Iowa and does not include an independent contractor, an employee of the judicial branch who is not an employee of the office of attorney general, an employee of the general assembly, an employee of a political subdivision of the state, or an employee of any agricultural commodity promotional board, if ~~the~~ such board is subject to a producer referendum.

Sec. 12. Section 68B.22A, Code 2025, is amended to read as follows:

68B.22A Reporting of gifts and bequests received.

All gifts and bequests with a value of fifty dollars or more received by a department or accepted by the governor on behalf of the state shall be reported within twenty days of receiving the gift or bequest to the ~~Iowa ethics and campaign disclosure~~ board, using the board's internet reporting system. The ~~Iowa ethics and campaign disclosure~~ board shall, by January 31 of each year, submit to the fiscal services division of the legislative services agency a written report listing all gifts and bequests received during the previous calendar year with a value over one thousand dollars and the purpose for each such gift or bequest. The submission shall also include a listing of all gifts and bequests received by a department from a person if the cumulative value of all gifts and bequests received by the department from the person during the previous calendar year exceeds one thousand dollars, and the ~~Iowa ethics and campaign disclosure~~ board shall include, if available, the

purpose for each such gift or bequest. However, the reports on gifts or bequests filed by the state board of regents and the Iowa state fair board pursuant to section 8.44 shall be deemed sufficient to comply with the requirements of this section.

Sec. 13. Section 68B.35, subsection 5, Code 2025, is amended to read as follows:

5. *a.* A candidate for statewide office shall file a financial statement with the ~~Iowa ethics and campaign disclosure~~ board, a candidate for the office of state representative shall file a financial statement with the chief clerk of the house of representatives, and a candidate for the office of state senator shall file a financial statement with the secretary of the senate. Statements shall contain information concerning the year preceding the year in which the election is to be held.

b. The ~~Iowa ethics and campaign disclosure~~ board shall adopt rules pursuant to chapter 17A providing for the filing of the financial statements with the board and for the deposit, retention, and availability of the financial statements. The ethics committees of the house of representatives and the senate shall recommend rules for adoption by the respective houses providing for the filing of the financial statements with the chief clerk of the house or the secretary of the senate and for the deposit, retention, and availability of the financial statements. Rules adopted shall also include a procedure for notification of candidates of the duty to file disclosure statements under this section.

Sec. 14. Section 84A.21, subsection 3, paragraph a, Code 2025, is amended to read as follows:

a. An Iowa student internship fund is created in the state treasury under the control of the department of workforce development. The fund shall consist of moneys appropriated to the department of workforce development and any other moneys available to~~,~~ or obtained~~,~~ or accepted by the department of workforce development for placement in the fund.

Sec. 15. Section 96.7, subsection 2, paragraph a, subparagraph (2), subparagraph division (b), Code 2025, is amended to read as follows:

(b) ~~An employer's account shall not be charged with~~ The benefits paid to an individual who left the work of the employer voluntarily without good cause attributable to the employer or to an individual who was discharged for misconduct in connection with the individual's employment, or to an individual who failed without good cause, either to apply for available, suitable work or to accept suitable work with that employer, shall not be charged to the employer's account, but shall be charged to the unemployment compensation fund. This ~~paragraph~~ subparagraph division applies to both contributory and reimbursable employers, notwithstanding section 96.8, subsection 5.

Sec. 16. Section 99G.11, subsections 1 and 2, Code 2025, are amended to read as follows:

1. A member of the commission or employee of the division shall not directly or indirectly, individually, as a member of a partnership or other association, or as a shareholder, director, or officer of a corporation, have an interest in a business that contracts for the operation or marketing of the lottery as authorized by this chapter, unless the business is controlled or operated by a consortium of lotteries in which the division has an interest.

2. Notwithstanding the provisions of chapter 68B, a person contracting or seeking to contract with the state to supply gaming equipment or materials for use in the operation of the lottery, an applicant for a license to sell tickets or shares in the lottery, or a retailer shall not offer a member of the commission or employee of the division, or a member of their immediate family, a gift, gratuity, or other thing having a value of more than the limits established in chapter 68B, other than food and beverage consumed at a meal. For purposes of this subsection, "*member of their immediate family*" means a

spouse, child, stepchild, brother, brother-in-law, stepbrother, sister, sister-in-law, stepsister, parent, parent-in-law, or step-parent of the commission member or employee who resides in the same household in the same principal residence of the commission member or employee.

Sec. 17. Section 123.30, subsection 3, paragraph a, subparagraph (1), subparagraph division (c), Code 2025, is amended to read as follows:

(c) The holder of a class "B" retail alcohol license may sell beer to class "C", special class "C", ~~special class "C" retail native license,~~ class "D", and class "F" retail alcohol licensees, and to special class "C" retail native wine licensees, for resale for consumption on the premises. Such beer sales shall be in quantities of not more than five cases of beer, high alcoholic content beer, and canned cocktails, but not more than one such sale shall be made to the same retail alcohol licensee in a twenty-four-hour period. A class "A" beer permittee shall be held harmless concerning any beer resold as authorized by this subparagraph division.

Sec. 18. Section 123.30, subsection 3, paragraph d, subparagraph (4), Code 2025, is amended to read as follows:

(4) The holder of a class "E" retail alcohol license may sell beer to class "C", special class "C", ~~special class "C" retail native license,~~ class "D", and class "F" retail alcohol licensees, and to special class "C" retail native wine licensees, for resale for consumption on the premises. Such beer sales shall be in quantities of not more than five cases of beer, high alcoholic content beer, and canned cocktails, but not more than one such sale shall be made to the same retail alcohol licensee in a twenty-four-hour period. A class "A" beer permittee shall be held harmless concerning any beer resold as authorized by this subparagraph.

Sec. 19. Section 123.44, Code 2025, is amended to read as follows:

123.44 Gifts prohibited.

A manufacturer or broker shall not give away alcoholic liquor at any time in connection with the manufacturer's or broker's business except for testing or sampling purposes only. A manufacturer, distiller, vintner, brewer, broker, wholesaler, or importer, organized as a corporation pursuant to the laws of this state or any other state, who deals in alcoholic beverages subject to regulation under this chapter shall not offer or give anything of value to a commission member~~,~~ or official or employee of the department under this chapter, or directly or indirectly contribute in any manner any money or thing of value to a person seeking a public or appointive office or a recognized political party or a group of persons seeking to become a recognized political party.

Sec. 20. Section 135.22B, subsection 2, paragraph c, Code 2025, is amended to read as follows:

c. The department shall consult with the council on health and human services regarding the program and shall report to the council on health and human services concerning the program at least quarterly. The council on health and human services shall make recommendations to the department concerning the program's operation.

Sec. 21. Section 135B.1, subsection 3, Code 2025, is amended to read as follows:

3. *"Hospital"* means a place which is devoted primarily to the maintenance and operation of facilities for the diagnosis, treatment, or care over a period exceeding twenty-four hours of two or more nonrelated individuals suffering from illness, injury, or deformity, or a place which is devoted primarily to the rendering over a period exceeding twenty-four hours of obstetrical or other medical or nursing care for two or more nonrelated individuals, or any institution, place, building, or agency in which any accommodation is primarily maintained, furnished, or offered for the care over a period exceeding twenty-four hours of two or more nonrelated aged or infirm persons requiring or receiving chronic or convalescent care;

and shall include sanatoriums or other related institutions within the meaning of this chapter. Provided, however, nothing in this chapter shall apply to hotels or other similar places that furnish only food and lodging, or either, to their guests or to a freestanding hospice facility which operates a hospice program in accordance with 42 C.F.R. §418. "*Hospital*" shall include, in any event, any facilities wholly or partially constructed or to be constructed with federal financial assistance, pursuant to Pub. L. No. 79-725, 60 Stat. 1040, approved August 13, 1946.

Sec. 22. Section 135B.14, Code 2025, is amended to read as follows:

135B.14 Judicial review.

Judicial review of the action of the department may be sought in accordance with chapter 17A. Notwithstanding the terms of chapter 17A, ~~the Iowa administrative procedure Act,~~ petitions for judicial review may be filed in the district court of the county in which the hospital or rural emergency hospital is located or to be located, and the status quo of the petitioner or licensee shall be preserved pending final disposition of the matter in the courts.

Sec. 23. Section 135B.16, Code 2025, is amended to read as follows:

135B.16 Injunction.

Notwithstanding the existence or pursuit of any other remedy, the department may, in the manner provided by law, maintain an action in the name of the state for an injunction or other process against any person or governmental unit to restrain or prevent the establishment, conduct, management, or operation of a hospital or rural emergency hospital without a license.

Sec. 24. Section 144.5, subsection 3, Code 2025, is amended to read as follows:

3. Direct, supervise, and control the activities of clerks of the district court and county recorders related to the

operation of the vital statistics system and provide county registrars with necessary postage.

Sec. 25. Section 144.20, Code 2025, is amended to read as follows:

144.20 Information.

Information in the possession of the petitioner necessary to prepare the adoption report shall be furnished with the petition for adoption by each petitioner for adoption or the petitioner's attorney. The adoption ~~services~~ service provider or other person concerned shall supply the court with such additional information in their possession as necessary to complete the certificate. The provision of such information shall be submitted to the court prior to the issuance of a final decree in the matter by the court, unless found by the court to be unavailable after diligent inquiry.

Sec. 26. Section 147.80, subsection 1, unnumbered paragraph 1, Code 2025, is amended to read as follows:

Each board, following approval by the department, may, or at the direction of the department, shall, by rule establish or revise fees for the following:

Sec. 27. Section 147.87, Code 2025, is amended to read as follows:

147.87 Enforcement.

1. A board shall enforce the provisions of this chapter and the board's enabling statute and for that purpose may request the department ~~of inspections, appeals, and licensing~~ to make necessary investigations. Every licensee and member of a board shall furnish the board or the department ~~of inspections, appeals, and licensing~~ such evidence as the member or licensee may have relative to any alleged violation which is being investigated.

2. The department ~~of inspections, appeals, and licensing~~ may administratively close a complaint that does not allege a violation of this chapter, the board's enabling statute, or a rule of the board.

Sec. 28. Section 147.88, Code 2025, is amended to read as follows:

147.88 Inspections and investigations.

The department ~~of inspections, appeals, and licensing~~ may perform inspections and investigations as required by this subtitle.

Sec. 29. Section 154E.3, unnumbered paragraph 1, Code 2025, is amended to read as follows:

~~On or after July 1, 2005, every~~ Every person providing interpreting or transliterating services in this state shall be licensed pursuant to this chapter. The board shall adopt rules pursuant to chapters 17A, 147, and 272C establishing procedures for the licensing of new and existing interpreters. Prior to obtaining licensure, an applicant shall successfully pass an examination prescribed and approved by the board, demonstrating the following:

Sec. 30. Section 154E.3A, Code 2025, is amended to read as follows:

154E.3A Temporary license.

~~Beginning July 1, 2007, an~~ An individual who does not meet the requirements for licensure by examination pursuant to section 154E.3 may apply for or renew a temporary license. The temporary license shall authorize the licensee to practice as a sign language interpreter or transliterator under the direct supervision of a sign language interpreter or transliterator licensed pursuant to section 154E.3. The temporary license shall be valid for two years and may only be renewed one time in accordance with standards established by rule. An individual shall not practice for more than a total of four years under a temporary license. The board may revoke a temporary license if it determines that the temporary licensee has violated standards established by rule. The board may adopt requirements for temporary licensure to implement this section.

Sec. 31. Section 155A.18, subsection 2, paragraph e, Code 2025, is amended by striking the paragraph.

Sec. 32. Section 155A.18, Code 2025, is amended by adding the following new subsection:

NEW SUBSECTION. 3. The assessment and payment of a penalty imposed pursuant to subsection 2 shall not be considered a disciplinary action or reported as discipline and shall be confidential.

Sec. 33. Section 186.4, Code 2025, is amended to read as follows:

186.4 Annual report.

The secretary of the society shall make an annual report to the department of agriculture and land stewardship at such time as the department may require. Such report shall contain the proceedings of the society, an account of the exposition, a summarized statement of the expenditures for the year, the general condition of horticultural, honey bee, and forestry interests throughout the state, together with such additional information as the department may require.

Sec. 34. Section 204.14E, subsection 5, Code 2025, is amended to read as follows:

5. A person does not violate subsection 1 by possessing a consumable hemp product if the person is employed by a registrant and the person is possessing the consumable hemp product as part of ~~their~~ the person's employment.

Sec. 35. Section 216.3, subsection 3, Code 2025, is amended to read as follows:

3. The governor subject to confirmation by the senate shall appoint a director who shall serve as the head of the agency. The governor shall set the salary of the director within the applicable salary range established by ~~the general assembly~~ section 8A.461. The director shall adopt rules pursuant to chapter 17A consistent with and necessary for the enforcement of this chapter. The director shall advise and support the commission in fulfilling the commission's duties and responsibilities under section 216.5A.

Sec. 36. Section 216.8B, subsection 6, paragraph a, Code

2025, is amended to read as follows:

a. Shall not request information under this section that discloses a diagnosis or severity of a person's disability or any medical records relating to the disability, but a person with a disability or legal guardian may voluntarily disclose such information or medical records to the landlord at the discretion of the person with the disability or such person's legal ~~guardian's discretion~~ guardian.

Sec. 37. Section 216.8C, subsection 1, paragraph d, Code 2025, is amended to read as follows:

d. Certification whether the provider-patient relationship has existed, in person or via telehealth, for at least thirty days between the licensee and the patient or client.

Sec. 38. Section 216.8C, subsections 4 and 5, Code 2025, are amended to read as follows:

4. The ~~commission~~ agency shall create a form in compliance with this section and provide the form to the public on the ~~commission's~~ agency's website.

5. The ~~commission~~ agency shall offer training and consultation to the governing boards under chapter 148, 148C, 152, 154B, 154C, or 154D.

Sec. 39. Section 216.15, subsection 1, Code 2025, is amended to read as follows:

1. Any person claiming to be aggrieved by a discriminatory or unfair practice may, in person or by an attorney, make, sign, and file with the agency a verified, written complaint, which shall state the name and address of the person, employer, employment agency, or labor organization alleged to have committed the discriminatory or unfair practice of which complained, shall set forth the particulars thereof, and shall contain such other information as may be required by the agency. Agency staff, a commissioner, or the attorney general may in like manner make, sign, and file such complaint.

Sec. 40. Section 216.15, subsection 9, unnumbered paragraph 1, Code 2025, is amended to read as follows:

If upon taking into consideration all of the evidence at a hearing~~,~~ the agency determines that the respondent has engaged in a discriminatory or unfair practice, the agency shall state its findings of fact and conclusions of law and shall issue an order requiring the respondent to cease and desist from the discriminatory or unfair practice and to take the necessary remedial action as in the judgment of the agency will carry out the purposes of this chapter. A copy of the order shall be delivered to the respondent, the complainant, and to any other public officers and persons as the agency deems proper.

Sec. 41. Section 216.15, subsection 9, paragraph a, subparagraph (8), Code 2025, is amended to read as follows:

(8) Payment to the complainant of damages for an injury caused by the discriminatory or unfair practice, which damages shall include but are not limited to actual damages, court costs, and reasonable attorney fees.

Sec. 42. Section 216.15, subsection 9, paragraph a, subparagraph (9), unnumbered paragraph 1, Code 2025, is amended to read as follows:

For an unfair or discriminatory practice relating to wage discrimination pursuant to section 216.6A, payment to the complainant of damages for an injury caused by the discriminatory or unfair practice, which damages shall include but are not limited to court costs, reasonable attorney fees, and either of the following:

Sec. 43. Section 217.30, subsection 5, paragraph b, subparagraph (1), Code 2025, is amended to read as follows:

(1) Upon written application to and with the approval of the director or the director's designee, confidential information described in subsection 2, paragraphs "a", "b", and "c", is required to be disclosed within the department and to a public official for use in connection with the ~~department~~ department's or public official's duties relating to law enforcement, audits, the support and protection of children and families, and other purposes directly connected with the administration

of the programs of services and assistance referred to in this section.

Sec. 44. Section 231.14, subsection 5, Code 2025, is amended to read as follows:

5. Recommend policies and measures to ensure that preference will be given to providing services to older individuals and individuals with disabilities with the greatest economic need or greatest social ~~needs~~ need, with particular attention to low-income minority individuals, individuals with limited English proficiency, and individuals residing in rural areas.

Sec. 45. Section 231.23, subsection 9, Code 2025, is amended to read as follows:

9. Adopt policies and measures to ensure that preference will be given to providing services to older individuals and individuals with disabilities with the greatest economic need or greatest social ~~needs~~ need, with particular attention to low-income minority individuals, individuals with limited English proficiency, and individuals residing in rural areas.

Sec. 46. Section 231.33, subsections 7 and 11, Code 2025, are amended to read as follows:

7. Give preference in the delivery of services under the area plan to older individuals with the greatest economic need or greatest social ~~need~~ need, with particular attention to low-income minority older individuals, older individuals with limited English proficiency, and older individuals residing in rural areas.

11. Conduct outreach efforts to identify older individuals with the greatest economic need or greatest social ~~needs~~ need, with particular attention to low-income minority older individuals, older individuals with limited English proficiency, and older individuals residing in rural areas, and inform them of the availability of services under the area plan.

Sec. 47. Section 232.3A, subsection 1, Code 2025, is amended

to read as follows:

1. During an action under subchapter III, child in need of assistance proceedings, or subchapter IV, termination of parent-child relationship proceedings, the court may, on its own motion or that of any party, require the child and established father of the child to submit to blood or genetic testing in accordance with the procedures and method prescribed under section 600B.41 to overcome the paternity of the established father.

Sec. 48. Section 232.10, subsection 1, Code 2025, is amended to read as follows:

1. Venue for delinquency proceedings shall be in the judicial district where the child is found, where the child resides, or where the alleged delinquent act occurred.

Sec. 49. Section 232.44, subsection 10, Code 2025, is amended to read as follows:

10. Based upon the facts stated in the request for release, the court may grant or deny the request without a hearing, or may order that a hearing be held at a date, time and place determined by the court. Notice of the hearing shall be given to the child and the child's custodian or counsel. Upon receiving evidence at the hearing, the court may release the child to the child's custodian or other suitable person, or may deny the request and remand the child to the detention or shelter care facility.

Sec. 50. Section 232.49, subsections 1 and 2, Code 2025, are amended to read as follows:

1. Following the entry of an order of adjudication under section 232.47 the court may, after a hearing which may be simultaneous with the adjudicatory hearing, order a physical or mental examination of the child if it finds that an examination is necessary to determine the child's physical or mental condition. The court may consider chemical dependency as either a physical or mental condition and may consider a chemical dependency evaluation as either a physical or mental

examination. If the examination indicates the child has behaved in a manner that threatened the safety of another person, has committed a violent act causing bodily injury to another person, or has been a victim or perpetrator of sexual abuse, unless otherwise ordered by the court, the child's parent, guardian, ~~or~~ foster parent, or other person with custody of the child shall be provided with that information.

2. When possible an examination shall be conducted on an outpatient basis, but the court may, if it deems necessary, commit the child to a suitable hospital, facility, or institution for the purpose of examination. Commitment for examination shall not exceed thirty days and the civil commitment provisions of chapter 229 shall not apply.

Sec. 51. Section 252D.16, subsection 4, Code 2025, is amended to read as follows:

4. *"Payor of income"* or *"payor"* means and includes but is not limited to an obligor's employer, trustee, the state of Iowa and all governmental subdivisions and agencies, and any other person from whom an obligor receives income.

Sec. 52. Section 256.11, subsection 5, paragraph k, subparagraph (1), unnumbered paragraph 1, Code 2025, is amended to read as follows:

One-half unit of personal finance literacy, which may be offered and taught through dedicated units of coursework or through units of coursework that also meet the requirements of the coursework required under paragraph *"a"*, *"b"*, *"c"*, *"d"*, *"e"*, or *"h"*. The personal ~~financial~~ finance literacy curriculum shall, at a minimum, address all of the following:

Sec. 53. Section 262.9, subsection 34, Code 2025, is amended to read as follows:

34. Implement continuous improvement in undergraduate programs offered by an institution of higher education governed by the board. A continuous improvement plan shall be developed and implemented and shall be built upon the results of the institution's student outcomes assessment program for

courses with typical annual enrollments of one hundred or more students, whether in one or multiple sections. In developing and implementing the continuous improvement plan for each course, the instructor or instructors for such a course shall each year evaluate the results of the instructors' students' performances in comparison with established course goals and shall formulate recommendations for future goals and methods to achieve improved student performance. The board shall annually evaluate the effectiveness of the plans and shall submit an executive summary of its findings and recommendations in its annual strategic plan progress report, a copy of which shall be submitted to the general assembly.

Sec. 54. Section 262.9, subsection 36, paragraph a, Code 2025, is amended to read as follows:

a. ~~Beginning December 15, 2015, annually~~ Annually file a report with the governor and the general assembly providing information and statistics for the previous five academic years on the number of students per year who are veterans ~~per year~~ who received education credit for military education, training, and service, that number as a percentage of veterans known to be enrolled at the institution, the average number of credits received by students, and the average number of credits applied towards the award or completion of a course of instruction, postsecondary diploma, degree, or other evidences of distinction.

Sec. 55. Section 277.31, Code 2025, is amended to read as follows:

277.31 Surrendering office.

Each school officer or member of the board upon the termination of the ~~officer~~ officer's or member's term of office shall immediately surrender to the successor all books, papers, and moneys pertaining or belonging to the office, taking a receipt therefor.

Sec. 56. Section 321.37, subsections 1 and 2, Code 2025, are amended to read as follows:

1. Registration plates issued for a motor vehicle other than an autocycle, motorcycle, motorized bicycle, or truck tractor shall be attached to the motor vehicle, one in the front and the other in the rear. The registration plate issued for an autocycle, motorcycle, or other vehicle required to be registered ~~hereunder~~ under this chapter shall be attached to the rear of the vehicle. The registration plate issued for a truck tractor shall be attached to the front of the truck tractor. The special plate issued to a dealer shall be attached on the rear of the vehicle when operated on the highways of this state.

2. ~~Registration plates issued for a~~ A motor vehicle, other than a truck registered for more than five tons, autocycle, motorcycle, or truck tractor, which is model year 1948 or older, and a reconstructed or specially constructed ~~vehicles~~ vehicle built to resemble a model year 1948 vehicle or older, ~~other than a truck registered for more than five tons, autocycle, motorcycle, or truck tractor,~~ may display one registration plate on the rear of the vehicle if the other registration plate issued to the vehicle is carried in the vehicle at all times when the vehicle is operated on a public highway.

Sec. 57. Section 327D.16, Code 2025, is amended to read as follows:

327D.16 Violations — treble damages.

In case any common carrier subject to the provisions of this chapter shall do, cause, or permit to be done anything ~~herein~~ prohibited or declared to be unlawful under this chapter, or shall willfully fail to do anything in this chapter required to be done, it shall be liable to the person injured thereby for three times the amount of damages sustained in consequence, together with costs of suit, and a reasonable attorney fee to be fixed by the court, on appeal or otherwise, which shall be taxed and collected as part of the costs in the case; but in all cases demand in writing shall be made of the carrier for the

money damages sustained before action is brought for a recovery under this section, and no action shall be brought until the expiration of fifteen days after such demand.

Sec. 58. Section 327D.17, Code 2025, is amended to read as follows:

327D.17 Criminal liability.

Except as otherwise specially provided for in this chapter, and unless relieved from the consequences of a violation of the law as provided ~~herein~~ in this chapter, any common carrier subject to the provisions ~~hereof~~ of this chapter, or, when such common carrier is a corporation, any director or officer thereof, or any receiver, trustee, lessee, agent, or person acting for or employed by such corporation, who, alone or with any other corporation, company, person, or party shall willfully do or cause to be done, or shall willfully suffer or permit to be done any act, matter, or thing in this chapter prohibited or declared to be unlawful, or who shall aid or abet therein, or shall willfully omit or fail to do any act, matter, or thing in this chapter required to be done, or shall cause or willingly suffer or permit any act, matter, or thing, so directed or required by the provisions of this chapter to be done, not to be so done; or shall aid or abet any such omission or failure, or shall be guilty of any infraction of the provisions of this chapter, or shall aid or abet therein, shall be guilty of a misdemeanor, and shall, upon conviction ~~thereof~~, be subject to a schedule "four" penalty.

Sec. 59. Section 357A.6, subsection 2, Code 2025, is amended to read as follows:

2. If the supervisors find that required notice of the hearing has been given and that the proposed district is reasonably necessary for the public health, convenience, and comfort of the residents, or may be of benefit in providing fire protection, they shall make an order establishing the district as a political subdivision, designating ~~its~~ the district's boundary, and identifying ~~it~~ the district by name

or number. The order shall be published in the same newspaper which published the notice of hearing. The supervisors shall prepare and preserve a complete record of the hearing on the petition and their findings and action.

Sec. 60. Section 358C.12, subsection 4, Code 2025, is amended to read as follows:

4. A district may acquire, by purchase, condemnation, or gift, real or personal property, right-of-way, and easement within or without its corporate limits necessary for its corporate purposes specified in section 358C.4.

Sec. 61. Section 358C.20, Code 2025, is amended to read as follows:

358C.20 Effective date of merger.

~~The~~ A merger shall be effective thirty days after the effective date of the ordinance annexing the territory within the district. However, if the validity of the ordinance annexing the territory is challenged by a court proceeding, the effective date of the merger shall be thirty days after the final determination of the validity of the ordinance. The trustees of a district shall continue in possession and conduct the affairs of the district until the effective date of the merger, but shall not during the period levy any special assessments after the effective date of annexation.

Sec. 62. Section 362.1, Code 2025, is amended to read as follows:

362.1 Citation.

This chapter and chapters 364, 368, 372, 376, 380, 384, 388, and 392 may be cited as the "*City Code of Iowa*".

Sec. 63. Section 362.9, Code 2025, is amended to read as follows:

362.9 Application of city code.

The provisions of this chapter and chapters 364, 368, 372, 376, 380, 384, 388, and 392 are applicable to all cities.

Sec. 64. Section 364.2, subsection 4, paragraph h, subparagraph (1), subparagraph division (d), Code 2025, is

amended to read as follows:

(d) This ~~subsection~~ paragraph applies to eligible merchant lines for which a franchise has been granted pursuant to chapter 478 prior to ~~the effective date of this subsection~~ July 1, 2024.

Sec. 65. Section 403.6, subsection 6, paragraphs a, b, c, d, and e, Code 2025, are amended to read as follows:

a. A general plan for the locality as a whole~~;~~.

b. Urban renewal plans~~;~~.

c. Preliminary plans outlining urban renewal activities for neighborhoods to embrace two or more urban renewal areas~~;~~.

d. Planning for carrying out a program of voluntary or compulsory repair and rehabilitation of buildings and improvements~~;~~.

e. Planning for the enforcement of state and local laws, codes and regulations relating to the use of land and the use and occupancy of buildings and improvements and to the compulsory repair, rehabilitation, demolition, or removal of buildings and improvements~~;~~.

Sec. 66. Section 403.12, subsection 1, paragraphs a, b, c, d, e, f, g, and h, Code 2025, are amended to read as follows:

a. Dedicate, sell, convey, or lease any of its interest in any property, or grant easements, licenses, or other rights or privileges therein to a municipality~~;~~.

b. Incur the entire expense of any public improvements made by such public body in exercising the powers granted in this section~~;~~.

c. Do any and all things necessary to aid or cooperate in the planning or carrying out of an urban renewal project~~;~~.

d. Lend, grant, or contribute funds to a municipality~~;~~.

e. Enter into agreements, which may extend over any period, notwithstanding any provision or rule of law to the contrary, with a municipality or other public body respecting action to be taken pursuant to any of the powers granted by this chapter, including the furnishing of funds or other assistance

in connection with an urban renewal project~~;~~.

f. Cause public buildings and public facilities, including parks, playgrounds, and recreational, community, educational, water, sewer, or drainage facilities, or any other works which it is otherwise empowered to undertake to be furnished~~;~~.

g. Furnish, dedicate, close, vacate, pave, install, grade, regrade, plan, or replan streets, roads, sidewalks, ways, or other places~~;~~.

h. Plan or replan, or zone or rezone any part of the public body or make exceptions from building regulations~~;~~.

Sec. 67. Section 403.13, Code 2025, is amended to read as follows:

403.13 Presumption of title.

Any instrument executed by a municipality and purporting to convey any right, title, or interest in any property under this chapter shall be conclusively presumed to have been executed in compliance with the provisions of this chapter insofar as title or other interest of any bona fide purchasers, lessees, or transferees of such property is concerned.

Sec. 68. Section 403.14, subsection 2, paragraphs a, b, c, d, e, and f, Code 2025, are amended to read as follows:

a. The power to determine an area to be a slum or blighted area or combination thereof and to designate such area as appropriate for an urban renewal project and to hold any public hearings required with respect thereto~~;~~.

b. The power to approve urban renewal plans and modifications thereof~~;~~.

c. The power to establish a general plan for the locality as a whole~~;~~.

d. The power to formulate a workable program under section 403.3~~;~~.

e. The power to make the determinations and findings provided for in section 403.4, and section 403.5, subsection 4~~;~~.

f. The power to issue general obligation bonds~~;~~.

Sec. 69. Section 411.6, subsection 5, paragraph d, Code 2025, is amended to read as follows:

d. To establish that a mental incapacity occurred as the natural and proximate result of an injury or disease incurred in or aggravated by the actual performance of duty or arising out of and in the course of the employment, or while acting, pursuant to order, outside of the city by which the member is regularly employed, the member must demonstrate that the mental incapacity is traceable to a readily identifiable work event constituting a manifest happening of a sudden traumatic nature from an unexpected cause or unusual strain in the workplace. Whether an incident is traumatic, unexpected, or unusual is determined by comparing the incident, and not the effect on the member, to the experiences of other police officers or fire fighters in Iowa. A member must be able to trace ~~their~~ the member's mental injury to a specific event or events in the workplace to be eligible for accidental disability benefits.

Sec. 70. Section 414.22, subsection 2, Code 2025, is amended to read as follows:

2. For purposes of this section:

a. "*Brain injury*" means brain injury as defined in section 135.22.

b. "*Developmental disability*" means a disability of a person which has continued or can be expected to continue indefinitely and which is one of the following:

(1) Attributable to an intellectual disability, cerebral palsy, epilepsy, or autism.

(2) Attributable to any other condition found to be closely related to an intellectual disability because the condition results in impairment of general intellectual functioning or adaptive behavior similar to that of persons with an intellectual disability or requires treatment and services similar to those required for the persons.

(3) Attributable to dyslexia resulting from a disability described in either subparagraph (1) or (2).

(4) Attributable to a mental or nervous disorder.

c. "Family home" means a community-based residential home which is licensed as a residential care facility under chapter 135C or as a child foster care facility under chapter 237 to provide room and board, personal care, habilitation services, and supervision in a family environment exclusively for not more than eight persons with a developmental disability or brain injury and any necessary support personnel. However, family home does not mean an individual foster care family home licensed under chapter 237.

d. "Permitted use" means a use by right which is authorized in all residential zoning districts.

e. "Residential" means regularly used by its occupants as a permanent place of abode, which is made one's home as opposed to one's place of business and which has housekeeping and cooking facilities for its occupants only.

Sec. 71. Section 414.27, subsection 2, Code 2025, is amended to read as follows:

2. For purposes of this section:

a. "Maternity group home" means a community-based residential home that provides room and board, personal care, supervision, training, support, and education in a family environment for women who are either pregnant or who have given birth within the preceding twenty-four months and live with their children, and includes overnight room accommodations and administrative and office space for those persons who provide such services.

b. "Permitted use" means the same as defined in section 414.22.

c. "Residential" means the same as defined in section 414.22.

Sec. 72. Section 455B.133, subsection 1, Code 2025, is amended to read as follows:

1. Develop comprehensive plans and programs for the abatement, control, and prevention of air pollution in this

state, recognizing varying requirements for different areas in the state. The plans may include emission limitations, schedules and timetables for compliance with the limitations, measures to prevent the significant deterioration of air quality, and other measures as necessary to assure attainment and maintenance of ambient air quality standards. The commission is not required to use air dispersion modeling as a basis for making its findings under this subsection for a minor source or minor modification of a major stationary source unless modeling is specifically provided for under the federal Clean Air Act as amended through January 1, 1991, rules adopted under this chapter, or a federal or state agreement.

Sec. 73. Section 455B.266, subsection 2, paragraphs c and d, Code 2025, are amended to read as follows:

c. Uses of water for the irrigation of hay, corn, soybeans, oats, grain sorghum, or wheat.

d. Uses of water for the irrigation of crops other than hay, corn, soybeans, oats, grain sorghum, or wheat.

Sec. 74. Section 476.9, subsections 2 and 3, Code 2025, are amended to read as follows:

2. Every public utility engaged directly or indirectly in any other business than that of the production, transmission, or furnishing of heat, light, water, power, or the collection and treatment of sanitary sewage or storm water for the public shall, if required by the commission, keep and render separately to the commission in like manner and form the accounts of all such other business, in which case all the provisions of this chapter shall apply to the books, accounts, papers, and records of such other business and all profits and losses may be taken into consideration by the commission if deemed relevant to the general fiscal condition of the public utility.

3. Every public utility, except telecommunications service providers registered pursuant to section 476.95A, is required to keep and render its books, accounts, papers, and records

accurately and faithfully in the manner and form prescribed by the commission, and to comply with all directions of the commission relating to such books, accounts, papers, and records.

Sec. 75. Section 477C.2, subsection 1, Code 2025, is amended by striking the subsection.

Sec. 76. Section 477C.3, unnumbered paragraph 1, Code 2025, is amended to read as follows:

With the advice of the commission on deaf services created in section 216A.113, the utilities commission shall plan, establish, administer, and promote a statewide program to provide dual party relay service as follows:

Sec. 77. Section 477C.4, Code 2025, is amended to read as follows:

477C.4 Telecommunications devices for the deaf and hard of hearing.

With the advice of the commission on deaf services created in section 216A.113, the utilities commission may plan, establish, administer, and promote a program to secure, finance, and distribute telecommunications devices for the deaf and hard of hearing. The utilities commission may establish eligibility criteria for persons to receive telecommunications devices for the deaf and hard of hearing, including but not limited to requiring certification that the recipient cannot use the telephone for communication without a telecommunications device for the deaf and hard of hearing.

Sec. 78. Section 478.4, Code 2025, is amended to read as follows:

478.4 Franchise —— hearing.

The utilities commission shall consider the petition and any objections filed to ~~it~~ the petition in the manner provided. ~~It~~ The commission shall examine the proposed route or cause any engineer selected by ~~it~~ the commission to do so. If a hearing is held on the petition, ~~it~~ the commission may hear testimony as may aid ~~it~~ the commission in determining the propriety

of granting the franchise. ~~It~~ The commission may grant the franchise in whole or in part upon the terms, conditions, and restrictions, and with the modifications as to location and route as may seem to ~~it~~ the commission just and proper. Before granting the franchise, the utilities commission shall make a finding that the proposed line or lines are necessary to serve a public use and represents a reasonable relationship to an overall plan of transmitting electricity in the public interest. A franchise shall not become effective until the petitioners shall pay, or file an agreement to pay, all costs and expenses of the franchise proceeding, whether or not objections are filed, including costs of inspections or examinations of the route, hearing, salaries, publishing of notice, and any other expenses reasonably attributable to ~~it~~ the franchise proceeding. The funds received for the costs and the expenses of the franchise proceeding shall be remitted to the treasurer of state for deposit in the commerce revolving fund created in section 546.12 as provided in section 476.10.

Sec. 79. Section 479.46, subsection 7, Code 2025, is amended to read as follows:

7. As used in this section~~, "damages"~~:

a. "Commissioner" means a member of the compensation commission appointed under subsection 2.

b. "Damages" means compensation for damages to the land, crops, and other personal property caused by the construction activity of installing a pipeline and its attendant structures but does not include compensation for a property interest~~, and "landowner"~~.

c. "Landowner" includes a farm tenant.

Sec. 80. Section 479B.30, subsection 7, Code 2025, is amended to read as follows:

7. As used in this section~~, "damages"~~:

a. "Commissioner" means a member of the compensation commission appointed under subsection 2.

b. "Damages" means compensation for damages to the land,

crops, and other personal property caused by the construction of a pipeline and its attendant structures or underground storage facility but does not include compensation for a property interest~~, and "*landowner*"~~.

c. "Landowner" includes a farm tenant.

Sec. 81. Section 481A.6, Code 2025, is amended to read as follows:

481A.6 Game management area.

The commission may establish a game management area upon any public lands or waters, or with the consent of the owner upon any private lands or waters, when necessary to maintain a biological balance as provided in section 481A.39 or to provide for public hunting, fishing, or trapping in conformity with sound wildlife management~~; and when~~. When a game management area is established, the commission shall with the consent of the owner, if any, have the right to post and prohibit, and to regulate or limit the lands or waters against trespassing, hunting, fishing, or trapping~~, and any~~. Any violation of the regulations is unlawful.

Sec. 82. Section 481A.31, Code 2025, is amended to read as follows:

481A.31 Game brought into ~~the~~ state.

It shall be lawful for any person, firm, or corporation to ~~have in possession~~ possess any fish or game lawfully taken outside the state and lawfully brought into the state, but the burden of proof shall be upon the person in ~~such~~ possession of the fish or game to show that ~~such~~ the fish or game was lawfully killed and lawfully brought into the state.

Sec. 83. Section 481A.34, Code 2025, is amended to read as follows:

481A.34 Violations by common carrier.

A common carrier, and any agent, employee, or servant of a common carrier, which violates any of the provisions of this chapter relating to receiving, having in possession, shipping, or delivering any fish, fowl, birds, birds' nests, eggs, or

plumage, fur, raw pelts, game, or animals, in violation of the provisions of the Code or contrary to the regulations and restrictions provided in this chapter, ~~and any agent, employee, or servant of a common carrier violating such provisions,~~ is guilty of a simple misdemeanor.

Sec. 84. Section 489.102, subsection 13, Code 2025, is amended to read as follows:

13. "*Limited liability company*", except in the phrase "*foreign limited liability company*"~~,~~ and in subchapter X, means an entity formed under this chapter or which becomes subject to this chapter under subchapter X or section 489.1207.

Sec. 85. Section 489.102, subsection 16, paragraph a, Code 2025, is amended to read as follows:

a. The person has become a member of a limited liability company under section 489.401 or was a member in a limited liability company when the company became subject to this chapter under section ~~489.110~~ 489.1207.

Sec. 86. Section 489.103, subsection 4, paragraph b, subparagraph (3), Code 2025, is amended to read as follows:

(3) The limited liability company's participation in a merger, interest exchange, conversion, or domestication, ninety days after the statement of merger, interest exchange, conversion, or domestication under subchapter X ~~become~~ becomes effective.

Sec. 87. Section 509A.1, Code 2025, is amended to read as follows:

509A.1 Authority of governing body — definitions.

1. The governing body of the state, school district, or any institution supported in whole or in part by public funds may establish plans for and procure group insurance, health or medical service, or health flexible spending accounts as described in section 125 of the Internal Revenue Code of 1986 for the employees of the state, school district, or tax-supported institution.

2. For purposes of this chapter:

a. "Governing body" means the director of the department of administrative services, the school boards of school districts, and the superintendent or other person in charge of an institution supported in whole or in part by public funds.

b. "Public body" means the state, a school district, or an institution supported in whole or in part by public funds.

Sec. 88. Section 514C.12A, subsection 1, Code 2025, is amended to read as follows:

1. Notwithstanding section 514C.6, a person who provides an individual or group policy of accident or health insurance or individual or group hospital or health care service contract issued pursuant to chapter 509, 509A, 514, or 514A or an individual or group health maintenance organization contract issued and regulated under chapter 514B, which is delivered, amended, or renewed on or after July 1, ~~1996~~ 2023, and which provides maternity benefits, which are not limited to complications of pregnancy, or newborn care benefits, shall provide coverage for maternity services rendered by a midwife licensed pursuant to chapter 148I, regardless of the site of services, in accordance with guidelines adopted by rule by the commissioner.

Sec. 89. Section 514I.10, subsection 2, Code 2025, is amended to read as follows:

2. Cost sharing for eligible children whose family income equals or exceeds one hundred fifty percent but does not exceed two hundred percent of the federal poverty level may include a premium or copayment amount which does not exceed five percent of the annual family income. The amount of any premium or the copayment amount shall be based on family income and size.

Sec. 90. Section 515.12, subsection 5, paragraph b, Code 2025, is amended to read as follows:

b. However, the surplus requirements do not apply to a company which establishes and maintains ~~a~~ guaranty ~~fund~~ capital as provided by section 515.20.

Sec. 91. Section 527.3, subsection 4, Code 2025, is amended

to read as follows:

4. Nothing contained in this chapter shall be construed to prohibit or to authorize the administrator to prohibit an operator of a multiple use terminal, other than a financial institution, or an operator of any other device or facility with which such terminal is interconnected, other than a central routing unit or data processing center ~~(as defined in section 527.2)~~ from using those facilities to perform internal proprietary functions, including the extension of credit pursuant to an open-end credit arrangement.

Sec. 92. Section 537.2510, subsection 10, Code 2025, is amended to read as follows:

10. Notwithstanding any provision of this chapter to the contrary or an agreement between a motor vehicle dealer licensed ~~pursuant to section 322.4~~ under chapter 322 and the consumer, if the creditor is a financial institution as defined in the Iowa consumer credit code, chapter 537, or the federal Gramm-Leach-Bliley Act of 1999, 15 U.S.C. §6801 et seq., who has purchased a retail installment contract as defined in section 322.2, subsection 23, with voluntary debt cancellation coverage, the only obligation of the creditor upon prepayment in full shall be to notify the motor vehicle dealer within thirty days of the prepayment. The motor vehicle dealer shall promptly determine whether the consumer is eligible for a refund of any voluntary debt cancellation coverage and shall issue any refund required directly to the consumer within sixty days of the dealer's receipt of notice of the prepayment from the creditor.

Sec. 93. Section 543B.62, subsection 4, paragraphs a and b, Code 2025, are amended to read as follows:

a. A licensee providing brokerage services to a client shall not be in possession of the client's real estate. A licensee may enter upon the premises of a client's real estate to fulfill the licensee's obligations pursuant to section 543B.3~~,~~ ~~section~~ or 543B.6, or pursuant to a written agreement between

the licensee and the client.

b. A licensee has no duty of care with regard to a client's real estate or with regard to a person entering, viewing, or traversing upon the premises of a client's real estate other than to fulfill the licensee's obligations pursuant to section 543B.3~~, section~~ or 543B.6, or pursuant to a written agreement between the licensee and the client.

Sec. 94. Section 549.3, subsection 1, Code 2025, is amended to read as follows:

1. A performing rights society shall not enter onto the business premises of a proprietor for the purpose of discussing a contract for the payment of royalties for the public performance of copyrighted musical works by the proprietor unless the performing rights society first uses its best efforts to make an appointment to meet with the proprietor at the business premises during normal business hours, or if the proprietor or the proprietor's agent ~~agree~~ agrees, at a location other than the business premises or at the business premises when the business premises are not open to the public. Upon entering onto the business premises for the purpose of discussing a contract for the payment of royalties for the public performance of copyrighted musical works by the proprietor, the performing rights society shall clearly identify itself to the proprietor and describe to the proprietor the purpose for entering onto the business premises.

Sec. 95. Section 592.9, Code 2025, is amended to read as follows:

592.9 City utilities and utility boards.

All proceedings taken prior to July 1, 2023, purporting to provide for the establishment, organization, formation, operation, or maintenance of a city utility or utility board and not previously declared invalid by any court, are legalized, validated, and confirmed. All such proceedings are declared to be legally sufficient to create, establish, and authorize the maintenance and operation of a city utility, as

defined in section 362.2, subsection 6.

Sec. 96. Section 613.20, subsection 1, Code 2025, is amended to read as follows:

1. Except as provided in subsection 2, in an action to recover damages arising out of the operation or use of a motor vehicle, a person shall not recover noneconomic losses including~~,~~ but not limited to~~,~~ pain and suffering if the injured person was the operator of a motor vehicle, a passenger in a motor vehicle, or a pedestrian and the person's injuries were proximately caused by the person's commission of any felony, or immediate flight therefrom, and the injured person was duly convicted of that felony.

Sec. 97. Section 625A.3, Code 2025, is amended to read as follows:

625A.3 Time for appealing in re constitutional test.

If the action challenges the legality, validity, or constitutionality of a proposed constitutional amendment, notice of appeal may be taken within three days from and after the entry of the decree in district court, and not afterwards.

Sec. 98. Section 625A.6, Code 2025, is amended to read as follows:

625A.6 Filing in re action to test constitutionality.

If the action challenges the legality, validity, or constitutionality of a proposed constitutional amendment, an abstract of record shall be filed within five days after the service of notice of appeal, unless additional time, not to exceed three days, be granted by the chief justice.

Sec. 99. Section 708.1, subsection 2, paragraph d, subparagraph (1), subparagraph division (b), unnumbered paragraph 1, Code 2025, is amended to read as follows:

For purposes of this ~~subparagraph (1)~~ paragraph "*d*":

Sec. 100. Section 714.19, unnumbered paragraph 1, Code 2025, is amended to read as follows:

The provisions of sections 714.17, ~~and~~ 714.18, ~~this section, and sections~~ 714.20, and 714.21 shall not apply to the

following:

Sec. 101. Section 717C.1, subsection 1, paragraph b, subparagraph (6), Code 2025, is amended to read as follows:

(6) Knowingly ~~permits~~ permitting conduct described in subparagraph (1), (2), or (3) to occur in any premises under the person's ownership or control.

Sec. 102. Section 904.301B, subsection 5, Code 2025, is amended to read as follows:

5. Act as secretary to the district advisory board, prepare its agenda, and record its proceedings. The district shall provide a copy of minutes from each meeting of the district advisory board to the legislative services agency.

Sec. 103. Section 915.37, subsection 1, paragraphs b and c, Code 2025, are amended to read as follows:

b. For purposes of this subsection~~, "child"~~:

(1) *"Child"* means a person under eighteen years of age.

(2) *"Mental disability"* means one or more intellectual, developmental, or psychiatric disabilities that result in significant impairment to a person's ability to comprehend, communicate, or learn.

~~*c. For purposes of this subsection, "mental disability" means one or more intellectual, developmental, or psychiatric disabilities that result in significant impairment to a person's ability to comprehend, communicate, or learn.*~~

Sec. 104. REPEAL. Section 509A.11, Code 2025, is repealed.

Sec. 105. CODE EDITOR DIRECTIVE. The Code editor is directed to change all references to the "federal Food, Drug, and Cosmetic Act" or the "Food, Drug, and Cosmetic Act" to the "Federal Food, Drug, and Cosmetic Act", in but not limited to sections 124.204, 124.208, 126.2, 155A.13A, 155A.13C, 189A.2, 189A.12, 198.7, 198.10, 204.14A, 453A.1, and 514C.26.

EXPLANATION

The inclusion of this explanation does not constitute agreement with the explanation's substance by the members of the general assembly.

This bill relates to statutory corrections which may

adjust language to reflect current practices, insert earlier omissions, delete redundancies and inaccuracies, resolve inconsistencies and conflicts, or remove ambiguities. The Code sections amended include the following:

Section 8.76: Changes a reference from "chapter" to "subchapter" to reflect the 2024 transfer of Code sections in Code chapter 8B to Code chapter 8, subchapter XI.

Section 8.85: Corrects a Code citation to the meaning of "cloud computing solutions".

Sections 8E.208 and 8E.209: Changes uses of the word "their" to "the agency's" to clarify the identified party.

Section 10A.506: Modifies language regarding posting certain publications to a board's internet site to align with similar language that is referenced in the provision.

Section 10A.511: Corrects grammar relating to duties of the director of inspections, appeals, and licensing.

Section 15.412: Revises language relating to the innovation and commercialization development fund to correct grammar and enhance readability.

Section 25.8: Revises language relating to claims against the state to enhance readability.

Sections 28E.7 and 28E.9: Revises language relating to public agency obligations and agreements to enhance readability.

Section 68B.2: Changes references from "the board" to "such board" in provisions relating to employees of an agricultural commodity promotional board to eliminate confusion with the defined term "board" in Code chapter 68B.

Sections 68B.22A and 68B.35: Eliminates full references to the "Iowa ethics and campaign disclosure board" because "board" is defined in Code chapter 68B to mean the Iowa ethics and campaign disclosure board.

Section 84A.21: Revises language relating to the Iowa student internship fund to correct grammar and enhance readability.

Section 96.7: Revises a provision relating to unemployment compensation to enhance readability and amends an internal reference to the Code subunit.

Section 99G.11: Adds commas to enhance readability of sentence clauses within lists.

Section 123.30: Corrects two references to a special class "C" retail native wine license that omitted the word "wine".

Section 123.44: Revises language to enhance readability of a list of individuals within the department of revenue.

Section 135.22B: Clarifies references to "council" to mean the council on health and human services, following elimination of the advisory council on brain injuries in 2024 Iowa Acts, chapter 1170.

Section 135B.1: Adds serial commas to several portions of the definition of "hospital".

Section 135B.14: Eliminates an unnecessary portion of a reference to the Iowa administrative procedure Act.

Section 135B.16: Revises a provision relating to licensure and regulation of hospitals to correct grammar.

Section 144.5: Modifies a reference to "registrars" to clarify that the reference is to "county registrars".

Section 144.20: Changes a reference from "adoption services provider" to "adoption service provider" to align with the proper term used in the Code.

Section 147.80: Adjusts commas in a provision relating to licensure of health-related professions to enhance readability.

Sections 147.87 and 147.88: Eliminates unnecessary portions of references to the department of inspections, appeals, and licensing.

Sections 154E.3 and 154E.3A: Eliminates outdated clauses specifying applicability relating to licensure for interpreting or transliterating services.

Section 155A.18: Relocates language in subsection 2, paragraph "e", that relates to the assessment and payment of penalties because the language did not accurately fit within

the scope of the list actions under subsection 2.

Section 186.4: Amends a reference to "secretary" to specify that the reference is to the secretary of the Iowa state horticulture society and not the secretary of agriculture.

Section 204.14E: Amends language by eliminating the use of "their" and inserting "the person's" when describing a person's employment with a registrant under that Code chapter.

Section 216.3: Modifies the phrase "salary range established by the general assembly" to include a specific Code section reference based on changes to salaries of appointed state officers in 2024 Iowa Acts, chapter 1182, including the director of the Iowa office of civil rights.

Section 216.8B: Amends language in a provision relating to assistance animals and service animals to enhance readability.

Section 216.8C: Adds "via" in subsection 1, paragraph "d", preceding "telehealth" to conform with similar instances of that terminology. Changes references in subsections 4 and 5 from "commission" to "agency" to reflect changes to the Iowa office of civil rights in 2024 Iowa Acts, chapter 1170, that were not codified in Code 2025 due to harmonization of conflicting enactments.

Section 216.15: Modifies comma placement in several provisions to enhance readability.

Section 217.30: Modifies a possessive reference to the department of health and human services' duties to correct grammar.

Sections 231.14, 231.23, and 231.33: Modifies references in several provisions to align with the defined terms "greatest economic need" and "greatest social need".

Sections 232.3A, 232.10, 232.44, 232.49, and 252D.16: Primarily modifies the use and placement of commas to enhance readability.

Section 256.11: Changes the term "financial literacy" to "finance literacy" to align with similar uses of the term.

Section 262.9: Amends provisions specifying duties of the

board of regents to improve grammar, update obsolete language, and enhance readability.

Section 277.31: Modifies possessive reference to a school officer's duties to correct grammar.

Section 321.37: Replaces a reference to "hereunder" in subsection 1 with "under this chapter" to provide specificity to the reference and amends subsection 2 to enhance readability.

Sections 327D.16 and 327D.17: Replaces references to "herein" and "hereof" with language specifying "this chapter" and eliminates an unnecessary use of "thereof".

Section 357A.6: Replaces instances of "its" with "the district's" in a provision governing rural water districts.

Section 358C.12: Adds a comma to enhance readability of a provision governing real estate improvement districts.

Section 358C.20: Strikes "the" and inserts the indefinite article "a" in a provision relating to the effective date of a merger relating to annexing property within a real estate improvement district.

Sections 362.1 and 362.9: Adds a comma to lists of Code chapters specified as comprising the "City Code of Iowa" and identifying the City Code of Iowa's applicability.

Section 364.2: Replaces an incorrect reference to "subsection" with "paragraph" and inserts the correct date for a reference to an "effective date".

Sections 403.6, 403.12, 403.13, and 403.14: Replaces semicolons with periods at the end of certain paragraphs to conform with preferred Code style and makes other changes to enhance readability.

Section 411.6: Replaces "their" with "member's" in a provision governing the retirement system for police officers and fire fighters.

Sections 414.22 and 414.27: Specifies that the definitions provided in each Code section are for the purposes of that Code section.

Section 455B.133: Adds a comma to correct punctuation in a provision relating to duties of the environmental protection commission.

Section 455B.266: Adds serial commas to two lists of crops to clarify the crops identified.

Section 476.9: Adds serial commas in two provisions identifying items to be kept by a public utility.

Section 477C.2: Strikes a definition of "commission", meaning the commission of deaf services, due to the applicability of a different similar definition.

Sections 477C.3 and 477C.4: Provides full references to the "commission on deaf services" to avoid confusion with references to the "utilities commission" in the same Code sections.

Section 478.4: Replaces several instances of "it" with proper identification of "the petition", "the commission", or "the franchise proceeding", as applicable.

Sections 479.46 and 479B.30: Establishes a definition of "commissioner" to mean a member of a compensation commission established under the Code section to avoid ambiguity with members of the Iowa utilities commission.

Section 481A.6: Eliminates a semicolon in a provision relating to the natural resource commission and separates the provision into several sentences to enhance readability.

Sections 481A.31 and 481A.34: Amends provisions to conform to preferred Code style and enhance readability.

Sections 489.102 and 489.103: Adjusts punctuation to enhance readability, corrects an incorrect cross reference, and corrects grammar.

Sections 509A.1 and 509A.11: Moves definitions contained in Code section 509A.11 to the beginning of the Code chapter.

Section 514C.12A: Corrects a date reference of "July 1, 1996" to "July 1, 2023" to align with the effective date of the Code section in 2023 Iowa Acts, chapter 127.

Section 514I.10: Adjusts language from "equals" to "equals

or exceeds" to clarify income ranges for certain eligibility.

Section 515.12: Revises an applicability provision to correctly describe a mutual insurance company's authority to maintain guaranty capital under Code section 515.20.

Section 527.3: Strikes an unnecessary reference to the location where the terms "central routing unit" and "data processing center" are defined.

Section 537.2510: Revises a cross reference to the Code chapter under which motor vehicle dealers are licensed to align with similar references throughout the Code.

Section 543B.62: Revises two cross references that include multiple Code sections to conform to the preferred style of such references.

Section 549.3: Replaces "agree" with "agrees" to correct grammar.

Sections 592.9, 613.20, 625A.3, and 625A.6: Adjusts use of commas in lists and other provisions to enhance readability.

Section 708.1: Changes an internal reference from subparagraph (1) to paragraph "d" to align the applicable definitions with their scope of use in the Code section.

Section 714.19: Strikes an internal reference to the same Code section that was inadvertently included following a change in the 2018 substantive Code editor's bill.

Section 717C.1: Strikes "permits" and inserts "permitting" to correct grammar and conform language within a list of criminal acts.

Section 904.301B: Adds serial comma to a list in a Code section governing the duties of a director of a judicial district department of correctional services.

Section 915.37: Combines applicable definitions into a list within a single paragraph.

The bill directs the Code editor to change all references to the "federal Food, Drug, and Cosmetic Act" or the "Food, Drug, and Cosmetic Act" to the "Federal Food, Drug, and Cosmetic Act", in but not limited to Code sections 124.204, 124.208,

126.2, 155A.13A, 155A.13C, 189A.2, 189A.12, 198.7, 198.10, 204.14A, 453A.1, and 514C.26.